

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2300516

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: HYPERCONSTRUCT CO.,
ET AL

vs.

DEFENDANT: SHAW WALTERS

NATURE OF PROCEEDINGS: DEMURRER

RULING

The demurrer of cross-defendants Christopher Wren Czaplak (“Czaplak”), Hill Point Ventures, LLC (“HPV-LLC”), Hill Point Ventures, LLP (“HPV-LLP”), SoCal Startup Law, PC (“SCSL”), and Reefpoint Ventures, LLC (“RPV”) (collectively “the Czaplak parties”) to the fourth amended complaint is sustained only as to the 22nd cause of action for restitution/unjust enrichment, without leave to amend. The demurrer is otherwise overruled.

Background

This action began as a dispute between software developers that began after a business relationship soured. Plaintiffs Hyperconstruct Co., Laguna Labs, LLC, and William Collins-Broza (“Liam”) allege that they “are in the business of developing software and other technology related to web-based immersive experiences, most commonly referred to as the ‘Metaverse.’” (Complaint ¶¶ 2, 3, 7.) Liam and defendant Shaw Walters (“Shaw”) decided to explore opportunities to develop Metaverse applications together. (*Id.*, ¶8.) Their relationship unraveled and Plaintiffs commenced this action against Shaw. Plaintiffs assert that Shaw improperly copied the code for the character creator applications and also took Plaintiffs’ list of employees, training materials, copyrighted materials, and client lists.

On June 12, 2023, Shaw and his mother Lea Walters (“Lea”) filed a cross-complaint against Plaintiffs. After obtaining new counsel and seeking leave to amend, on October 2, 2024, Shaw and Lea filed their First Amended Cross-Complaint adding Infinite Realty, Inc. and Ethereal Engine, Inc. as cross-defendants. Thereafter, on December 17, 2024, pursuant to stipulation and order, Cross-Complainants filed their Second Amended Cross-Complaint which added Nexus City Holdings, LLC as a cross-complainant. On December 17, 2024, Cross-Complainants filed a Third Amended Cross-Complaint after successfully seeking leave to amend. The Third Amended Cross-Complaint added the Czaplak parties as cross-defendants. Cross-Complainants again sought leave to amend and on April 20, 2026 they filed the operative

Fourth Amended Cross-Complaint which added The Unincorporated Partnership Between William Collins-Broza and Shaw Walters as a cross-complainant. The Czaplak parties now demur to the Fourth Amended Cross-Complaint. They raise several arguments to all of the causes of action directed against them and then raise arguments directed at individual causes of action.

Legal Standard

“... A general demurrer will lie where the complaint “has included allegations that *clearly* disclose some defense or bar to recovery.” A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 288-289, citations omitted.)

“... “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.”” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292, citation omitted.)

Attorney-Client Privilege

The Czaplak parties argue that all of the causes of action directed against them are barred by the attorney-client privilege. They cite *McDermott, Will & Emery v. Superior Court* (2000) 83 Cal.App.4th 378, *Solin v. O’Melveny & Myers, LLP* (2009) 89 Cal.App.4th 451, and *Reilly v. Greenwald & Hoffman, LLP* (2011) 196 Cal.App.4th 891. In contrast to *McDermott*, which was decided on a motion for judgment on the pleadings, and *Reilly*, which was decided on demurrer, the issue cannot be resolved in this case based upon the pleadings.

In *Dietz v. Meisenheimer & Herron* (2009) 177 Cal.App.4th 771, 792, the Court stated that the dismissal of a plaintiff’s claim based on the due process concerns addressed in the *McDermott* line of cases “is reserved for the rarest of cases[.]” The defendant in that case argued that dismissal is required “‘if the lawyer-defendant would be prevented by his duties to his clients from presenting *any* of the relevant evidence that may bolster the defense...” The Court responded:

Meisenheimer vastly overstates the breadth of the holding in *Solin*. If dismissal were required whenever a lawyer’s ethical duties prevented the lawyer from presenting evidence having any relevance to the action, without respect to the materiality of the evidence, the “drastic action” of dismissal would become commonplace. ...

(*Ibid.*) The Court then set forth the “four factors that a court must consider...before a court may dismiss a case on the ground that a defendant attorney’s due process right to present a defense would be violated by the defendant’s inability to disclose a client’s confidential information if the action were allowed to proceed”: (1) the evidence at issue is the client’s confidential

information, and the client insists that it remain confidential; (2) given the nature of plaintiff's claim the confidential information is highly material to the defendants' defenses; (3) there are no "ad hoc" measures available to avoid dismissal such as " 'sealing and protective orders, limited admissibility of evidence, orders restricting the use of testimony in successive proceedings, and, where appropriate, in camera proceedings' "; and (4) it would be fundamentally unfair to proceed. (*Id.* at 792-794.)

In *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1165-1166, the Court wrote in finding that the trial court properly allowed plaintiffs to amend to include conspiracy claims against their neighbor's attorneys, after finding that the conspiracy claims were based on nonconfidential communications and conduct:

Further, although a case may be dismissed on the ground that the attorney-client privilege prevents an attorney-defendant from presenting an adequate defense, the trial court must first conduct an evidentiary hearing to "determine whether it is able to effectively use 'ad hoc measures from its equitable arsenal,' including techniques such as 'sealing and protective orders, limited admissibility of evidence, orders restricting the use of testimony in successive proceedings, and, where appropriate, in camera proceedings,' so as to permit the action to proceed." "A court may take the *extraordinary step* of dismissing a plaintiff's claim on the ground that an attorney-defendant's due process right to present a defense is compromised by the defendant's inability to present confidential information in support of that defense only in *the rarest of cases*, after the court has considered several factors..." ...

(Citations and brackets omitted.)

Here, the Court cannot determine from the pleading itself that the Czaplak parties' due process rights to present a defense would be compromised by their inability to present confidential information.

Statute of Limitations

The Czaplak parties argue that all of the causes of action against them are barred by the statute of limitations set forth in Code of Civil Procedure section 340.6. The argument fails.

In *Escamilla v. Vannucci* (2025) 17 Cal.5th 571, 576, the Supreme Court "[h]eld that section 340.6 does not apply to claims against attorneys brought by parties who were never their clients or the intended beneficiaries of their clients." In reply, the Czaplak parties argue that the holding in *Escamilla* applies only to malicious prosecution actions. The Court disagrees. As already stated, the Supreme Court's holding was that "section 340.6 does not apply to claims against attorneys brought by parties who were never their clients or the intended beneficiaries of their clients." Because the Supreme Court found that the text of section 340.6 is "ambiguous as to whether the statute applies to claims brought against attorneys by third parties" (*id.* at 581), it looked to section 340.6's legislative history and purpose. It explained that "[t]he Legislature enacted section 340.6(a) in 1977 amid rising legal malpractice insurance premiums" contributed

to by the fact that case law had held that the discovery rule applied to the previous two-year statute of limitations and by the fact that different limitations periods applied depending on whether the complaint asserted breach of written contract, fraud, or breach of an oral contract. (*Id.* at 582.) “It was in light of these circumstances that the Legislature enacted section 340.6. ‘To protect clients, the Legislature codified the...delayed discovery rule, albeit with a one-year limit from the time of actual or imputed discovery. To protect attorneys it adopted a firm four-year outside limit on liability...’ ...” (*Id.* at 582-583, citations omitted.) It noted that “[n]early all legislative history materials describe section 340.6 as a statute of limitations for ‘legal malpractice,’” even after the bill was amended to encompass more than “professional negligence.” (*Id.* at 583-584.) It stated:

In contrast to the clear indication of legislative intent we noted in *Lee*[v. *Hanley* (2015) 61 Cal.4th 1225], there is no indication the Legislature ever intended that section 340.6 apply to malicious prosecution, or, indeed any action brought by someone outside the attorney-client relationship. The amendments discussed in *Lee* broadened the statute’s reach, but only insofar as they defined more precisely the “actual wrong” of legal malpractice, that is, an attorney’s wrongful acts or omissions in rendering professional services for a client. They did not signal an intent to give attorneys the benefit of a shortened limitations period for all wrongs they commit against anyone, even if those wrongs occurred while the attorney was performing legal services for a client. On the contrary, as we observed in *Lee*, it appears “the Legislature intended section 340.6(a) to apply to most lawsuits *between clients and their attorneys.*”

(*Id.* at 585.) In further discussing *Lee*, the Court stated:

... *Lee* did not suggest that section 340.6 might extend to claims brought by nonclients for wrongs allegedly done to them. We now conclude that it does not. As we interpret the statute, the one-year limitations period of section 340.6 applies only to claims by an attorney’s clients, or their intended beneficiaries, and only when the merits of the claim necessarily depend on proof the attorney violated a professional obligation.

(*Id.* at 587, citation omitted.)

In their reply, the Czaplak parties argue that *Escamilla* should not be applied retroactively. This is an argument that should have been raised initially and the Court will not consider it when raised for the first time in reply.

Civil Code Section 1714.10

The Czaplak parties argue that all of the claims against them are barred by section 1714.10. However, this argument can be quickly disposed of based upon the exception for personal financial gain set forth in subdivision (c). The Czaplak parties point to *Cortese v. Sherwood* (2018) 26 Cal.App.5th 445, 460, where the court stated that “[t]his exception does not apply to fees charged, even where the fees were excessive or the services unnecessary. ...”

(Citation omitted.) The problem with this argument, however, is that Cross-Complainants allege that Czaplak received shares as part of the transaction, meaning that he had a personal interest in the conspiracy and suggesting that he held a part of the partnership business Liam and Shaw formed before the iR transaction commenced. (¶113.) This goes beyond fees charged.

Agent's Immunity Rule

The Czaplak parties argue that all of the claims against them are barred by the agent's immunity rule.

"...[U]nder the agent's immunity rule, an agent is not liable for conspiring with the principal when the agent is acting in an official capacity on behalf of the principal." (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326, citation omitted; see also *Doctors' Co. v. Superior Court* (1989) 49 Cal.3d 39, 44.) However, as stated in *Berg & Berg Enterprises, LLC v. Sherwood Partners, Inc.* (2005) 131 Cal.App.4th 802, 817-818:

But the court in *Doctors' Co.* did articulate two settings in which a conspiracy claim might lie against an attorney for participating in the violation of a duty owed by the client to another: (1) where the attorney violates a duty that he or she independently owes to the plaintiff; and (2) where the attorney's acts go beyond the performance of a professional duty owed to the client and are, in addition, done for his or her own personal financial gain. Both of these settings, by definition, involve conduct of the attorney in which he or she acts not just as an agent for a principal, the client, but also for himself or herself independently. In these settings then, it is appropriate that the agent's immunity rule does not protect the attorney's conduct, for he or she is acting in more than just a representative capacity.

(Citations omitted.) As already discussed, the allegations are sufficient to show that Czaplak acted for his own personal gain.

Conspiracy and Aiding and Abetting Causes of Action

The Czaplak parties argue that the conspiracy and aiding and abetting causes of action fail because Czaplak was acting only as the agent or employee of his clients. They again rely on section 1714.10. As already discussed, their reliance on that provision fails.

Constructive Trust

The Czaplak parties first argue that this cause of action fails because they "did not gain any of the disputed properties in this case (i.e., the Engine), by fraud, accident, mistake, or otherwise." As already shown, Cross-Complainants allege that Czaplak received shares as part of the transaction and then transferred some or all of them to Reefpoint Ventures and continues to withhold them from Shaw. (¶113.)

The Czaplak parties next argue that constructive trust is a remedy and not a cause of action. Constructive trust is routinely alleged as a cause of action. (See *Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114.) While Cross-Complainants could have pled constructive trust as a remedy in their prayer, there is no prejudice to the Czaplak parties in having it pled as a separate cause of action.

Accounting

The Czaplak parties cite two cases in support of their argument that attorneys are not proper defendants against whom an accounting can be sought: *Duggal v. G.E. Capital Communications Services, Inc.* (2000) 81 Cal.App.4th 81 and *Foxen v. Carpenter* (2016) 6 Cal.App.5th 284. In neither case was the capacity of the defendants as attorneys a factor in the decision.

The Czaplak parties also argue that this cause of action necessarily fails since the other causes of action fail. As discussed above, they have not shown that the other causes of action fail.

Unfair Competition

The Czaplak parties argue that Cross-Complainants have not identified “what ‘practices’ allegedly committed by the Czaplak Parties are sufficiently unlawful, unfair, or fraudulent.” Contrary to this argument, Cross-Complainants allege that the Czaplak parties conspired and aided and abetted breach of fiduciary duty, conversion and trespass to chattels.

Restitution/Unjust Enrichment

The Czaplak parties correctly argue that Cross-Complainants have an adequate remedy at law. (*Sepanossian v. National Ready Mixed Concrete Co.* (2023) 97 Cal.App.5th 192, 207-208; see also *Collins v. eMachines, Inc.* (2011) 202 Cal.App.4th 249, 260.) Accordingly, the Court sustains demurrer as to this cause of action.

Penal Code Section 496

The Czaplak parties argue that they are not alleged to have obtained possession of the Engine or any other intellectual property. However, Cross-Complainants correctly note in their opposition that the allegations show that “the Czaplak Parties have aided in the selling and/or withholding of partnership property (the Engine, the iR shares received in exchange for selling the Engine to iR), while knowing the property was stolen / obtained by theft.”

Derivative Claims

The Czaplak parties first argue that the cross-complaint alleges no facts suggesting that an unincorporated partnership existed. Contrary to this argument, the cross-complaint repeatedly alleges that a partnership existed. For example, it alleges that “in a Direct Message to Shaw, Liam expressly made it ‘official’ that Shaw and Liam were a ‘Partnership’” and it includes a screen shot of that message. (¶33.) It further alleges:

Shaw and Liam worked together to share in the profit and loss of their business through multiple strategies. In addition to XR Foundation, the Partnership also owned business ventures operating under the names Laguna Labs, the Metaverse Construction Company, and the Nexus.

(¶37.)

The Czaplak parties next argue that Shaw does not satisfy the contemporaneous and continuous ownership requirement because the cross-complaint alleges in paragraph 139(g) that the partnership is “dissolved.” Initially, liberally construing the complaint, the Court finds that this allegation does not necessarily establish that the partnership had been officially dissolved in one of the ways set forth in Corporations Code section 16801. Cross-Complainants allege that the relationship between Shaw and Liam soured and that “Shaw and Liam were negotiating the state of the partnership and its assets when Liam unilaterally directed staff to freeze Shaw out of the partnership assets...” (¶¶ 71 and 74.) This is reasonably read as alleging an unofficial “dissolution” of the partnership. In any event, “a partnership continues after dissolution...for the purpose of winding up its business.” (§ 16802.) A person winding up the business may “prosecute and defend actions and proceedings...” § 16803.)

Finally, the Czaplak parties argue that all of the claims are direct rather than derivative. The Court disagrees. Cross-Complainants allege that “Liam stole the Engine and other partnership assets and froze Shaw out.” (¶73.) They further allege that “Shaw and Liam were negotiating the state of the partnership and its assets when Liam unilaterally directed staff to freeze Shaw out of the partnership assets, including the Engine, XR Foundation, Laguna Labs, and MCC.” (¶74.) In the fourth cause of action, they allege that Cross-Defendants “have profited from the use of partnership assets...” (¶173.) These are allegations of harm to the partnership.

Uncertainty

Finally, the Court finds that the complaint is not uncertain as Czaplak parties can reasonably respond to the allegations.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

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If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0001349

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: LEE HENRY GREENBERG

vs.

DEFENDANT: RONNIE BAKER, ET AL

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Counsel for Robbie Baker and Angela Beasley Baker filed a motion to be relieved as counsel. Counsel's declaration indicates he has been unable to contact the client as he has been evicted from the premises and does not have a forwarding address. However, it is unclear whether the lack of notice pertains to both Robbie Baker and Angela Baker.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002302

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CHRIS B. BARGER

vs.

DEFENDANT: ANDREW W. LANDIES, ET
AL

NATURE OF PROCEEDINGS: MOTION – PRELIMINARY INJUNCTION

RULING

Defendants and Cross-Complainants Andrew W. Landies and Kristina J. Landies’ (“Cross-Complainants”) motion for a preliminary injunction is DENIED.

BACKGROUND

This is a dispute between neighbors over the use of a well. Plaintiff and Cross-Defendant Chris Barger (“Barger”) alleges that he owns 682 Wilson Avenue in Novato (“ the Barger Property”), where he lives with his wife, Cross-Defendant Myrna Barger. (Complaint, ¶ 1.) Cross-Complainants own and reside at 688 Wilson Avenue (“the Landies Property”). (*Id.* at ¶ 4.) Barger alleges that prior to 1972, the Barger Property and the Landies Property were each part of the same parcel owned by Dora Cash Young. (*Id.* at ¶ 11.) In 1972, Young subdivided the parcel into smaller parcels comprising the Pine Knoll Estates Subdivision. (*Id.* at ¶ 12.) The subdivision’s Lot 3 became the Landies Property, and a portion of its Lot 4 became the Barger Property. (*Id.* at ¶ 13.)

The complaint states that there is a well on the Barger Property. (Complaint, ¶ 15.) Barger alleges that he has the right to use the water from the well and that the Landieses have no recorded easement or license pertaining to the well. (*Id.* at ¶¶ 17-19.) Still, the Landieses allegedly believe that they have a right to use the water from the well and to encroach upon the Barger Property to do it. (*Id.* at ¶¶ 21-22.) Barger claims that in October 2023, the Landieses ran a pipe from the Landies Property through the Barger Property to the well. (*Id.* at ¶ 22.) Barger’s complaint asserts causes of action to quiet title and for declaratory relief and trespass.

The Landieses responded with an unverified cross-complaint against the Bargers. The operative pleading alleges that beginning in 1925, the large parcel from which the Barger Property and the Landies Property were later carved out belonged to Joseph and Dora Cash.

(Second Amended Cross-Complaint (“SAXC”), ¶ 6.) After Joseph’s death, Dora and their son, Lester Cash, owned the property. (*Ibid.*) They dug the well at issue in this case. (*Ibid.*)

In 1982, Lester Cash allegedly submitted an application to the California State Water Resources Control Board (“SWRCB”) to formalize his and his mother’s exclusive rights to use the well. (SAXC, ¶ 6.) In connection with that application, Cash presented materials showing that the well was located on what is now the Barger Property, but was equipped to deliver water to what is now the Landies Property. (*Ibid.*) According to the SAXC, the water license the SCWRB granted Cash is recorded, and the Landieses and all of their predecessors in ownership of the Landies Property have complied with legal requirements to maintain it. (*Id.* at ¶ 7.) Cross-Complainants allege that they and all of their predecessors in interest since the Cashes’ parcel was subdivided have used the well on the Barger Property to benefit the Landies Property. (*Ibid.*) They further allege the existence of an agreement, recorded with the Marin County Recorder’s Office in 1973, establishing an easement for use of the well benefiting the Landies Property and burdening the Barger Property. (*Id.* at ¶ 14.) Cross-Complainants allege that the well is properly used *only* to benefit the Landies Property, and that Barger has been improperly diverting water from the well for his own use, which has reduced the water available to Cross-Complainants to a trickle at best. (*Id.* at ¶¶ 10-13.) The Cross-Complaint asserts claims to quiet title in an easement over the Barger Property to access the well and for trespass, fraud, and declaratory and injunctive relief.

The Court now considers Cross-Complainants’ request for a preliminary injunction.

LEGAL STANDARD

A preliminary injunction may be granted, among other circumstances, “[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (Code Civ. Proc., § 526, subds. (a), (b).) The purpose of a preliminary injunction is to preserve the status quo until a final determination on the merits. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.) The determination of whether to grant a preliminary injunction rests in the sound discretion of the trial court. (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1470 (“*Tahoe Keys*”).)

Motions for a preliminary injunction must be based on a verified complaint or on declarations. (Code Civ. Proc., § 527, subd. (a).) Trial courts evaluate two interrelated factors when deciding whether to issue a preliminary injunction. (*Pro-Family Advocates v. Gomez* (1996) 46 Cal.App.4th 1674, 1680.) The first is the likelihood that the moving party will prevail at trial. (*Id.* at pp. 1680-1681.) The second is the interim harm the movant would likely sustain if the injunction were denied as compared to the harm the opposing party would likely suffer if the injunction were issued. (*Id.* at p. 1681.) “[T]he greater the [movant’s] showing on one” of the two preliminary injunction factors, “the less must be shown on the other to support an injunction.” (*Jamison v. Department of Transp.* (2016) 4 Cal.App.5th 356, 361-62.) The burden is on the moving party “to show all elements necessary to support issuance of a preliminary injunction.” (See *O’Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

DISCUSSION

Procedural Matters

Both Barger and Cross-Complainants have requested judicial notice of certain material, and Barger has submitted objections to some of Cross-Complainants' evidence. The Court does not rule on the requests for judicial notice or on Barger's evidentiary objections because the evidence at issue was not material to its disposition of the motion. As discussed below, the Court is denying the motion because Cross-Complainants have not offered any legal argument in support of the merits of their case. There is no point in ruling on the propriety of the evidence when the moving party has not defined the legal issues at which that evidence is directed. To the extent the Court addresses Cross-Complainants' evidence at all, Barger has not objected to the material at issue.

Merits

Cross-Complainants request that Barger and any of his associates be restrained from interfering with the Landieses rights to use the well, including by impeding their access to the well or by interfering with any infrastructure attached to it (i.e., pipes, pumps, and the like). (Ex Parte Application, pp. 4-5; see also Proposed Order.) They further request an order permitting them to send contractors onto the Barger Property to inspect and repair any damage to the well and ensure that it is properly sending water to the Landies Property. (*Ibid.*)

Regardless of a party's statutory basis for seeking a preliminary injunction, the party is required to show some likelihood that it will prevail in the action as a prerequisite to obtaining preliminary injunctive relief. (*San Francisco Newspaper Printing Co. v. Superior Court* (1985) 170 Cal.App.3d 438, 442 [a preliminary injunction "must not issue" unless, based on the party's showing, "it is reasonably probable that the moving party will prevail on the merits"]; accord *Butt v. State of California* (1992) 4 Cal.4th 668, 678 ["A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim."].) A party makes this showing by presenting legal authority defining the elements of one or more of the causes of action at issue in the case and then explaining how the evidence maps onto those elements.

Cross-Complainants have neglected to set forth the legal elements of any one of their causes of action. They likewise have not set forth the elements of any of Barger's causes of action and articulated an argument that, viewing the evidence through the prism of those elements, they are likely to be prevailing defendants on Barger's complaint. Cross-Complainants' brief does not include a single citation to a legal authority addressing, in any way, the merits of any cause of action in this case. Every one of their cited legal authorities pertains to the appropriateness of injunctive relief, an issue only on the table provided the party seeking that relief has made some showing of a reasonable probability of prevailing on the merits. (See *San Francisco Newspaper Printing Co.*, *supra*, 170 Cal.App.3d 438, 442; *Butt*, *supra*, 4 Cal.4th 668, 678.) Cross-Complainants simply have not attempted to make a legal case for the relief they request.

By seeking relief contingent on a likelihood of prevailing in this case without presenting any law on what is required to prevail, Cross-Complainants are implicitly asking the Court to develop their case for them from the ground up. If the Court accepted this invitation, it would

permit itself to be conscripted as counsel for Cross-Complainants, which would obviously be unfair to Barger.

Because Cross-Complainants have not made any legal argument regarding their likelihood of prevailing on any cause of action in this litigation, they necessarily have not carried their burden. (See *O'Connell*, *supra*, 141 Cal.App.4th 1452, 1481.)

Although it believes Cross-Complainants' failure to make their case compels denial of the motion, the Court will address their showing of harm. Cross-Complainants' arguments here hinge on evidence that Barger has tampered with the well to cause it to divert water to his own property. (Scheer Dec., ¶¶ 9-10.) Cross-Complainants contend that Barger's conduct has interfered with their access to water *from the well*. (Andrew Landies Dec., ¶ 9.) They do not argue that Barger's conduct has impacted their access to water writ large, as they have access to water from North Marin Water District at their property, just like any property owner in the district who does not have a well on site. (See Memorandum, p. 14; Andrew Landies Dec., ¶ 10.) Cross-Complainants are dissatisfied because NMWD water is more expensive than water from the well. (Andrew Landies Dec., ¶ 10.)

If Cross-Complainants are being forced to rely on more expensive NMWD water due to Barger's misconduct, that is a financial injury that can be sufficiently addressed by an award of damages after trial. Similar considerations apply to Cross-Complainants' insistence that Barger is delaying their ability to develop their property, including by landscaping and by installing a delivery system to bring well water into their residence. Cross-Complainants can install landscaping whenever they like using NMWD water and be compensated for the price difference later. As for the water delivery system, a system installed tomorrow is just as valuable as a system installed after this case is resolved. The Court does not see that Cross-Complainants are being harmed, irreparably or otherwise, by having to wait to make this improvement to their property. Finally, Cross-Complainants cite irreparable injury in the form of an "impact" on their "ability to refinance their property" due to this lawsuit and "uncertainty regarding the Well." (Memorandum, p. 14.) They do not cite to any evidence establishing that they are having difficulties refinancing, and the Court has not found any. More fundamentally, this argument is not tailored to the relief requested. The legal dispute over who is entitled to use the well would persist even if the Court granted the preliminary injunction Cross-Complainants are requesting.

In summary, Cross-Complainants have not made a compelling showing that the conduct they seek to enjoin is causing them harm that is either great, irreparable, or incapable of cure by way of a damages award (Code Civ. Proc., § 526, subd. (a)(2), (a)(3)), or is damaging them in a way that would render any potential judgment in this case toothless (Code Civ. Proc., § 526, subd. (a)(3)). The motion for a preliminary injunction is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0003901

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: STEPHEN SHARKEY

NATURE OF PROCEEDINGS: MOTION – OTHER: TO VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

American Express National Bank filed a motion to vacate the conditional dismissal and enter judgment. A proof of service indicates that Defendant Sharkey was served with notice of the motion and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

In light of the non-opposition, the Court shall vacate the dismissal and enter judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0004036

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: UPHOLD HQ INC.

vs.

DEFENDANT: TAMMY MARIE BYRNE,
ET AL

NATURE OF PROCEEDINGS: MOTION PRO HAC VICE

RULING

The court shall grant the application for Pro Hac Vice.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0004497

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MARLA KEEMA
BAYSINGER

vs.

DEFENDANT: AUBERGE RESORTS, LLC
ET AL

NATURE OF PROCEEDINGS: MOTION – QUASH – DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff Marla Baysinger has filed a motion to quash or modify deposition subpoenas for the production of medical records. Defendant Auberge Resorts opposes the motion arguing their subpoenas are narrowly tailored. The parties were referred to a discovery facilitator and a facilitator was appointed on May 26, 2026. Pursuant to local rule MCR 2.13, the parties were required file a Declaration of Non-Resolution if the matter did not resolve. No Declaration was filed and therefore, the court shall take the matter off calendar. Either party may place the matter back on calendar by filing a Declaration of Non-Resolution and by appearing ex parte to reschedule the hearing.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005885

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: MERSHAD REZAYATI

NATURE OF PROCEEDINGS: MOTION – OTHER: TO VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

Plaintiff American Express National Bank (“Plaintiff”) filed a motion to vacate the conditional dismissal and enter judgment. A proof of service indicates that Defendant Resayati (“Defendant”) was served with notice of the motion, but the hearing date was either not listed, or was stamped in a place which was too difficult to notice. No opposition was filed. The court shall continue this motion to September 9, 2026 at 1:30 pm to ensure notice is given to Defendant. Plaintiff is required to file a proof of service which shows it served Defendant with a notice of continuation of the hearing to September 9, 2026 at 1:30 pm.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

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Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006520

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: LVNV FUNDING LLC

vs.

DEFENDANT: JEROME SANTOS

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

Counsel Andrew Gramajo filed a motion to be relieved as counsel. His declaration does not state that he has served the client with copies of the motion papers. Notice is therefore insufficient and the motion is denied without prejudice.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009335

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: LINK HOLDINGS, LLC

vs.

DEFENDANT: CITY OF SAUSALITO, A
MUNICIPAL CORPORATION, ET AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

The Demurrer of Respondent City of Sausalito (“City”) and Real Parties-in-Interest Kostas Kassaras and Kathy Pappas-Kassaras (“Real Parties”) is SUSTAINED with leave to amend.

REQUESTS FOR JUDICIAL NOTICE

The City and Real Parties’ Request for Judicial Notice No. 1 is GRANTED. (Evid. Code, § 452, subd. (d).)

Petitioner’s Requests for Judicial Notice A-C are GRANTED. (Evid. Code, § 452, subds. (b), (c).) Request D is DENIED.

LEGAL STANDARD

Demurrers are permitted in writ of mandate proceedings. (Code Civ. Proc., § 1108, 1109.) A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan*, (1985)39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell*, (1987) 189 Cal.App.3d 91, 94.)

The sole issue on demurrer for failure to state a cause of action is whether the facts pleaded, if true, would entitle the plaintiff to relief. (*Garcetti v. Superior Court*, (1996) 49 Cal.App.4th 1533, 1547; *Limandri v. Judkins*, (1997) 52 Cal.App.4th 326, 339.) The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (*Marshall v. Gibson, Dunn & Crutcher*, (1995) 37 Cal.App.4th 1397, 1403.) Nevertheless, this rule does not apply to allegations expressing mere

conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates*, (1995) 36 Cal.App.4th 698, 709.)

A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily barred. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232. Internal citations omitted.) In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint [or matters subject to judicial notice]; it is not enough that the complaint shows that the action may be barred. (*Ibid*; see also *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.)

DISCUSSION

Respondent and Real Parties demur on the grounds that the Court lacks jurisdiction because Petitioner failed to timely file and serve the Petition for Writ of Mandate (“Petition”). (Gov. Code, § 65009.) Government Code Section 65009 provides a 90-day statute of limitations for challenges to planning and zoning decisions. Sausalito Municipal Code states the City Council’s decision “shall become final on the date action was taken by the City Council.” (SMC § 10.84.070(A).)

Here, Petitioner challenges the City Council’s December 2, 2025 design review approval of a residential project located at 33 San Carlos Avenue (owned by Real Parties). Petitioner owns the adjacent residential property at 25 San Carlos. Petitioner filed the Petition on March 3, 2026, 91 days after the public hearing and Resolution adopting the approval. Respondent City contends the Writ is therefore time barred by Government Code Section 65009.

In Opposition, Petitioner counters that the December 2, 2025 City Council decision was not final because: (1) The City failed to provide required written notice of decision under Sausalito Municipal Code section 10.84.050, delaying the limitations period and violating due process; (2) The administrative process was incomplete on December 2, 2025 and relied upon several post hearing actions by staff; and, (3) Even if December 2 was a “final decision,” staff materially changed the conditions in January 2026.

However, the Petition itself does not allege any of these facts. Indeed, the Petitioner is clear the challenge is to the December 2, 2025 approval. (See Pet. ¶¶ 1, 2, 8, 19-21, 25, 31, 36-38, 43, Prayer ¶ 1.)

Petitioner appears to concede that Government Code Section 65009 applies and that if the 90-day period is applied to the December 2, 2025 approval, the Petition was filed after the expiration of this 90-day period. Accordingly, the Petition, on its face, is barred by the applicable statute of limitations.

However, because Petitioner outlined amendments which could potentially cure the defect, the Court will SUSTAIN the Demurrer with leave to amend.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009509

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: COLIN JAMES WALSH

vs.

DEFENDANT: LUCID GROUP, INC

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

A notice of settlement of the entire case was filed in this matter on July 15, 2026, but Defendant did not file a notice of withdrawal of its motion to compel arbitration. Nonetheless, the court takes the motion off calendar.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009649

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JOB S. LAWRENCE

vs.

DEFENDANT: ELIZABETH JIMENEZ

NATURE OF PROCEEDINGS: MOTION – ANTI-SLAPP 425.16

RULING

Defendant’s special motion to strike the First Cause of Action is granted. The motion is denied as to the Second Cause of Action. Defendant’s request for attorney’s fees is denied.

Allegations in Plaintiff’s Verified Complaint

Plaintiff Job Lawrence filed his Complaint against Defendant Elizabeth Jimenez on April 1, 2026, alleging that the parties were in a romantic relationship from approximately November 2016 through late 2022. They were engaged for a portion of their relationship and resided together at a property in San Anselmo, which was purchased in October 2018. Plaintiff paid a large percentage of the purchase price of the property with his separate funds, and both parties signed the mortgage documents for the balance as co-borrowers. At all relevant times, Defendant retained her separately owned property in Sonoma. Plaintiff contributed \$40,534.27 for the benefit of Defendant’s Sonoma property.

In October 2020, Defendant moved out of the San Anselmo property. After the relationship ended, in February 2023, Defendant requested that Plaintiff refinance the property to remove her as a co-borrower. Defendant also requested to be reimbursed for her financial contributions to the household living expenses in exchange for her releasing her interest in the title. In March 2023, Plaintiff received a letter from Defendant’s counsel in which Defendant abandoned her request for expense reimbursements and instead asserted that she was entitled to one half the interest in the San Anselmo property. (Complaint, ¶35.) The letter demanded that Plaintiff compensate Defendant \$116,355.20, for living expenses she paid, or Defendant would file a partition action to force a sale of the property and file a lis pendens which would prevent Plaintiff from refinancing the property. (*Ibid.*) Defendant made these threats knowing of Plaintiff’s severe litigation trauma from prolonged divorce proceedings with an abusive former spouse. (*Id.*, ¶¶7, 37.)

On March 9, 2023, Defendant's counsel sent a "Real Estate Buyout Agreement" to Plaintiff which required Plaintiff to pay \$100,000 in exchange for a quitclaim deed for Defendant's interest in the property. Plaintiff was given a deadline five hours away and did not have an opportunity to seek legal counsel. Defendant objected to the agreement's description of the parties as having equal 50% ownership, so this was replaced with an acknowledgement that Defendant had a "partial ownership interest". Believing he had no ability to further contest the terms, and without legal counsel, Plaintiff signed the agreement. He closed the refinancing a few days later and paid Defendant the \$100,000.

Plaintiff's First and Second Causes of Action seek rescission of the Buyout Agreement on the grounds of economic duress and undue influence, respectively. The Third Cause of Action alleges money had and received and the Fourth Cause of Action alleges promissory estoppel.

Plaintiff's Request for Judicial Notice

Plaintiff's request for judicial notice of the recorded grant deed executed on March 9, 2023 (Exhibit 1), orders entered in Plaintiff's prior family law proceeding, Case No. 6-13-FL-010041 (Exhibit 2), and Plaintiff's Verified Complaint and Defendant's Verified Answer in this case (Exhibit 3), are granted. However, the court does not take judicial notice of the truth of matters stated therein. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

Evidentiary Objections

Plaintiff's Objection No. 1 is overruled as to the first paragraph and Exhibit B. Plaintiff contends that the submitted texts are incomplete but also states that he has submitted the complete correspondence as Exhibit E to his declaration. The Court considers all correspondence. Plaintiff's Objection No. 1 is sustained as to Defendant's characterizations of the texts in subparagraphs (a) through (l). Objection Nos. 2 (personal knowledge), 3 (personal knowledge as to Ms. Kingsbury only), 4 (improper legal conclusion/opinion as to the sentence beginning "That letter did not constitute"), and 5 (improper legal conclusion/argumentative), are sustained. Objection No. 3 is overruled except as to the statement about Ms. Kingsbury's intent and Objection No. 4 is overruled as to the sentence beginning "Lawrence has never offered". Objection Nos. 6-12 are overruled.

Standard

Defendant has filed a special motion to strike the Complaint pursuant to the anti-SLAPP statute, California Code of Civil Procedure § 425.16, which provides in pertinent part:

(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the

plaintiff has established that there is a probability that the plaintiff will prevail on the claim . . .

(e) As used in this section, “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law

A cause of action will be stricken under the anti-SLAPP statute if both parts of a two-prong analysis show that the claim arises from protected activity and lacks minimal merit. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 819-820.) In the first prong, the defendant meets its initial burden by demonstrating that the challenged cause of action is one “arising from” protected activity. If the defendant makes this showing, the burden shifts to the plaintiff for the second prong, requiring the plaintiff to establish a “probability” that he will prevail on the claim. (*Id.*; Code Civ. Proc. § 425.16(b).) “To establish a probability, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 [citation omitted].)

Defendant challenges only the First and Second Causes of Action for rescission.

First Cause of Action: Rescission/Economic Duress

Plaintiff’s First Cause of Action seeks rescission based on economic duress and alleges:

66. Plaintiff’s consent to the Buyout Agreement was obtained through wrongful threats and acts constituting economic duress within the meaning of California Civil Code Section 1567. Specifically, Defendant, through her attorney, threatened to file a partition action and record a lis pendens against the Alpine Property — Plaintiff’s sole significant asset — despite Defendant’s \$0 capital contribution to the property and despite the meritlessness of her equity claim.

67. These threats were made with the specific intent to exploit Plaintiff’s documented and severe litigation trauma, knowledge of which Defendant possessed due to the parties’ intimate relationship and Defendant’s professional background as a licensed therapist and former paralegal.

68. As a result of these wrongful threats, Plaintiff had no reasonable alternative but to sign the Buyout Agreement. The threat of a lis pendens would have clouded title to Plaintiff's home and prevented refinancing. The threat of partition litigation, given Plaintiff's known history of devastating and expensive divorce litigation, constituted a weaponized psychological trigger that deprived Plaintiff of his free will.

First Prong/Protected Activity

Defendant argues that this cause of action arises out of protected petitioning activity because it is based on her attorney's prelitigation letter to Plaintiff. The letter from Defendant's counsel stated among other things:

The deeds to the Property, including the deeds upon refinance of the Property, each place title in both of your names, in joint tenancy with right of survivorship. This means that you each have a 50% undivided interest in the Property . . .

While Liz is legally entitled to 50% of the equity in the Property, she is willing to give up her rights to this equity, providing you reimburse her for the mortgage payments she made over the years. As she told you, this adds up to \$116,355.20.

I understand that you are now pressuring Liz to sign papers for a refinance of the mortgage loan in your name only, which would also require her to sign away her title to the Property. I have advised Liz not to sign away any of her rights in the Property until we can get this sorted out. I have also advised her that she could file an action for partition of the Property by sale, which would require the recording of a lis pendens on the Property, to stop any conveyances or encumbrances on the Property until the partition action is resolved.

(Declaration of Elizabeth Jimenez ("Jimenez Decl."), Exh. A.)

“A cause of action ‘arising from’ defendant’s litigation activity may appropriately be the subject of a section 425.16 motion to strike.” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056 [citations omitted].) “Courts have taken a fairly expansive view of what constitutes litigation-related activity for purposes of section 425.16.” (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 803-804.) Threats by a party’s legal counsel to file a lawsuit, contemplated in good faith and under serious consideration, are deemed to be protected activity. (See *Rohde v. Wolf* (2007) 154 Cal.App.4th 28, 36-37; *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 472 [“Prelitigation letters demanding that a party cease from doing certain acts or be subject to a lawsuit based on that conduct are in preparation or anticipation of litigation and fall within the protection of section 425.16, subdivision (e)(2)”].)

To determine whether a claim arises out of protected activity, the court starts by considering the elements of the claim and the actions that supply those elements and consequently form the basis for liability. (*Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1019.) “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062-1063.) “[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Id.* at p. 1063.)

The Court looks to the First Cause of Action to see if Defendant’s counsel’s letter supplies the elements and the basis for liability. The Court concludes that it does. “The doctrine of ‘economic duress’ can apply when one party has done a wrongful act which is sufficiently coercive to cause a reasonably prudent person, faced with no reasonable alternative, to agree to an unfavorable contract. The party subjected to the coercive act, and having no reasonable alternative, can then plead ‘economic duress’ to avoid the contract.” (*CrossTalk Productions, Inc. v. Jacobson* (1998) 65 Cal.App.4th 631, 644 [citation omitted].) Here, Plaintiff expressly alleges that the duress that caused him to sign the Buyout Agreement was counsel’s letter raising the possibility of litigation if Plaintiff did not pay Defendant what she claimed she was owed. (Complaint, ¶¶66, 68; see also Declaration of Job Lawrence (“Lawrence Decl.”), ¶11 [reciting Plaintiff’s March 8, 2023 text to Plaintiff that stated: “I am not agreeing to this payment out of choice, but only because you have the leverage of threatening legal action”].) The letter is an element of Plaintiff’s claim – the wrongful act. The claim cannot be asserted without the letter.

Plaintiff argues that Defendant’s counsel’s letter was not written in good faith because up to that point Defendant sought financial reimbursement, not equity in the property, and Defendant had also acknowledged that she lacked the equity that was demanded in the letter. (See Lawrence Decl., ¶¶5-7, 9, 10.) “A prelitigation communication is privileged only when it relates to litigation that is contemplated in good faith and under serious consideration. The privilege arises at the point in time when litigation is no longer a mere possibility, but has instead ripened into a proposed proceeding that is actually contemplated in good faith and under serious consideration as a means of obtaining access to the courts for the purpose of resolving the dispute. It does not apply to statements made simply as a tactical ploy to negotiate a bargain.” (*Medallion Film LLC v. Loeb & Loeb LLP* (2024) 100 Cal.App.5th 1272, 1290 [citations and internal quotations omitted].)

Defendant has satisfied her burden of showing that her counsel’s letter was protected activity. The letter stated that counsel had advised Plaintiff that she could file a partition action and a lis pendens on the property if Plaintiff did not pay her what she claimed was owed to her. Even if Plaintiff is correct that Defendant did not have a right to claim half of the equity in the property and instead owned a much smaller interest, Defendant could still bring a partition action. There is no minimum ownership interest required to bring a partition action and the parties can resolve their respective claimed ownership interests in the context of that action. (Code Civ. Proc. §§ 872.210, 872.620, 872.710, 872.720; *Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142-143.) The filing of a lis pendens is required upon the filing of a complaint for partition. (Code Civ. Proc. § 872.250.) When the San Anselmo property was purchased in 2018, title was vested in both Defendant and Plaintiff, as reflected in the grant deed. Defendant resided at the property for some time and made mortgage payments, and both parties remained

on the title each of the three times the property was refinanced. (Jimenez Decl., ¶¶5, 6.)¹ Therefore, Defendant had a reasonable claim to title and thus a reasonable basis for filing such an action.

Because Defendant has satisfied the first prong of the analysis with respect to the First Cause of Action, the burden shifts to Plaintiff to show a probability of prevailing on this claim.

Second Prong/Probability of Prevailing

“A plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege codified in Civil Code section 47.” (*Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 840.) “A prelitigation communication is privileged . . . if it relates to litigation that is contemplated in good faith and under serious consideration . . .” (*Ibid.* [citation and internal quotations omitted].) In *Flickinger*, the plaintiff sued a contractor and the contractor’s attorney after the contractor performed work on the plaintiff’s house. The contractor’s attorney had written a letter to the plaintiff’s attorney in response to the plaintiff’s threats of litigation and noted, among other things, that the litigation could result in a third party opening an investigation into the plaintiff’s relationships with his vendors. The plaintiff asserted causes of action for civil extortion and violation of his civil rights, basing both causes of action on allegations that the contractor’s attorney used threats, intimidation and coercion to prevent the plaintiff from filing suit. The court granted the defendant’s anti-SLAPP motion, finding that the attorney’s letter was protected petitioning activity and that the plaintiff could not meet his burden under the second prong because his causes of action were barred under the litigation privilege. The court held: “The litigation privilege applies to defendant’s December 2016 letter. It related to litigation threatened by plaintiff against defendant’s client. For the reasons already discussed, the statements in the letter bore a connection or logical relation to the litigation and advanced [the client defendant’s] interest in avoiding the litigation. The trial court should have stricken plaintiff’s civil extortion claim.” (*Id.* at p. 840.)

Similarly, here, Defendant’s counsel’s letter related to potential litigation brought by Defendant against Plaintiff and thus the First Cause of Action is barred by the litigation privilege.

Plaintiff argues that the litigation privilege does not apply because the privilege precludes only liability in tort, not contract, and his claims here are based on the Buyout Agreement. However, the relevant focus is the underlying conduct on which the requested rescission is based, not merely on the fact that a contract is involved. (See *Edwards v. Centrex Real Estate Corp.* (1997) 53 Cal.App.4th 15, 40 [“Appellants’ cause of action for rescission seeks to void the releases based upon respondents’ fraud. The gravamen of the action therefore sounds in fraud, not in contract”]; *Knoell v. Petrovich* (1999) 76 Cal.App.4th 164, 169-170 [litigation privilege barred plaintiff’s claims including interference with contractual relations]; *Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1132 [“the litigation privilege extends . . . to the torts alleged here: interference with contract and prospective economic advantage”].)

¹ The Buyout Agreement itself acknowledged that Defendant had some ownership interest in the property. (Declaration of Job Lawrence, Exh. F, ¶¶3 and 4.)

While economic duress is not itself a tort, it encompasses wrongful conduct used to coerce another to succumb to the perpetrator's pressure. (See *Rich & Whillock, Inc. v. Ashton Development, Inc.* (1984) 157 Cal.App.3d 1154, 1158-1159.) Duress "is essentially tortious in nature". (*U.S. Hertz, Inc. v. Niobrara Farms* (1974) 41 Cal.App.3d 68, 81; see also *Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 402 [defendant's bad faith refusal to make payment under policy and threatening communications to cause the plaintiff to disadvantageously settle was "essentially tortious in nature"].) The gravamen of Plaintiff's claim sounds in wrongful, coercive conduct, not in contract. Therefore, the litigation privilege can, and does, apply in these circumstances.

Even if the litigation privilege did not apply here, Plaintiff has still failed to meet his burden of showing a probability of prevailing. When courts "consider the legitimacy of conduct consisting of attempts to achieve a favorable settlement of litigation, [they] must also accommodate the values of the adversary system and the rights of persons to be free from pressure that is perceived as 'wrongful.' Frequently, threats of suit alone are considered within a party's rights, and not characterized as wrongful duress; thus, an annotation observes that in many cases it is not a defense to an action on a promissory note to claim economic duress or coercion because the plaintiff threatened suit . . ." (*Philippine Export & Foreign Loan Guarantee Corp. v. Chuidian* (1990) 218 Cal.App.3d 1058, 1080 [citation omitted]) As noted above, Defendant's name was on the title to the property. As someone with at least some ownership interest in the property, Defendant had a right to file a partition action, and the lis pendens that must be filed with such an action, to ask the court to determine her ownership rights within that proceeding. Threatening a partition action in these circumstances was not bad faith. Defendant merely identified a path towards resolution of the parties' dispute. Further, Plaintiff presents no evidence that he asked for more time to consult with an attorney or any other individual, or that he would have been prevented from doing so.

Defendant's motion is granted as to the First Cause of Action.

Second Cause of Action: Rescission/Undue Influence

Plaintiff's Second Cause of Action alleges:

74. Defendant actively participated in procuring the Buyout Agreement to her own manifest advantage. Defendant retained an attorney who drafted the agreement, controlled its terms, imposed a same-day signing deadline, and rejected Plaintiff's attempts to negotiate modifications — all while Plaintiff had no independent legal counsel. The \$100,000 payment constituted a manifest advantage to Defendant, who had contributed \$0 to the purchase of the Alpine Property and whose monthly contributions to household expenses were less than the fair market rental value of her occupancy.

75. Defendant used her position in the confidential relationship to take unfair advantage of Plaintiff's weakness and distress, within the meaning of California Civil Code Section 1575, by

leveraging her knowledge of Plaintiff's specific psychological vulnerabilities to extract the \$100,000 payment through threatened litigation.

First Prong/Protected Activity

"Undue influence . . . is a shorthand legal phrase used to describe persuasion which tends to be coercive in nature, persuasion which overcomes the will without convincing the judgment. The hallmark of such persuasion is high pressure, a pressure which works on mental, moral, or emotional weakness to such an extent that it approaches the boundaries of coercion. In this sense, undue influence has been called overpersuasion . . . By statutory definition undue influence includes taking an unfair advantage of another's weakness of mind; or taking a grossly oppressive and unfair advantage of another's necessities or distress. While most reported cases of undue influence involve persons who bear a confidential relationship to one another, a confidential or authoritative relationship between the parties need not be present when the undue influence involves unfair advantage taken of another's weakness or distress." (*Odorizzi v. Bloomfield School Dist.* (1966) 246 Cal.App.2d 123, 130 [citations and internal quotations omitted].)

Unlike with the First Cause of Action, the conduct supporting this cause of action is not Defendant's counsel's letter. Rather, as alleged in paragraph 75, it is the parties' confidential relationship and Defendant's knowledge about Plaintiff's vulnerabilities and history. This is not protected activity. Accordingly, Defendant does not satisfy his burden of showing the First Cause of Action arises out of protected activity.

Second Prong/Probability of Prevailing

"Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning *and* lacks even minimal merit – is a SLAPP, subject to being stricken under the statute." (*Oviedo vs. Windsor Twelve Properties, LLC* (2012) 212 Cal.App.4th 97, 111 [citation omitted] [emphasis in original].) Because Defendant failed to show that the Second Cause of Action arises from protected activity, the Court need not address the second prong. The motion is denied as to the Second Cause of Action.

Attorney's Fees

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16(c)(1).)

Defendant has partially prevailed on his motion. His motion is successful as to the First Cause of Action but unsuccessful as to the Second Cause of Action. "While the term 'prevailing party must be interpreted broadly to favor an award of attorney fees to a partially successful defendant[,] ... a fee award is not required when the motion, though partially successful, was of no practical effect. A party who partially prevails on an anti-SLAPP motion generally will be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. Whether a partially successful cross-defendant achieved a sufficient benefit to qualify as a prevailing party lies within the broad

discretion of the trial court” (*Gumarang v. Braemer on Raymond, LLC* (2025) 110 Cal.App.5th 370, 388 [citations and internal quotations omitted].)

Despite Defendant’s partial success on her motion, Plaintiff still has a cause of action against Defendant seeking the same relief, rescission of the Buyout Agreement, which is based on many of the same facts as the dismissed cause of action. As a result, the Court finds that Defendant did not achieve any practical benefit by bringing the motion as the potential outcome of the case remains the same. Defendant’s request for attorney’s fees is therefore denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>